

UNITED STATES DEPARTMENT OF JUSTICE

(FORMAT EMULATION — UNOFFICIAL / EDUCATIONAL)

OFFICE OF OPEN-SOURCE INTELLIGENCE MAPPING
INTELLIGENCE MEMORANDUM

Subject: THE 1953 TRUST — Cycle 002 Public-Source Update

Memorandum No.: STRAND-1953-C002

Cycle: 002 (permanent-agency hourly run; successor to C001 of 23 Sep 2026)

Date of memorandum: 23 September 2026 (1:18am)

Classification marking (simulated): UNCLASSIFIED // FOR EDUCATIONAL USE

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Lanes: HOOK (current reporting) · STAMP (docket identifiers) · SPLIT (entity graph) · WEFT (patterns/gaps)

Method law: D-LAW-01 no-mirror; D-LAW-02 hivemind after independent moves; D-LAW-14 thinking gate.

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I. EXECUTIVE SUMMARY — WHAT CHANGED SINCE C001

Cycle 002 does not reopen the origin story. The 1953 Trust remains a USVI pour-over revocable trust executed 8 August 2019 by Jeffrey E. Epstein as grantor, with Darren K. Indyke and Richard D. Kahn as co-trustees; the last will of the same date pours residue into the Trust; death occurred 10 August 2019; the will was filed in the Superior Court of the Virgin Islands on or about 15 August 2019. What changed in the last public window is the litigation clock and the cash-versus-mark tension.

• **HOOK — 21 Sep 2026 CNN.** Estate gross assets reported at approximately \$107.6 million (down from ~\$655.1 million at death). Counsel for the co-executors stated probate will likely require at least three more years. Neither Indyke nor Kahn has received Trust distributions. Victim payments from the estate are calculated by CNN at nearly \$170 million to date.

• **STAMP — Ward v. Indyke, S.D.N.Y. 1:24-cv-01204-AS (Judge Arun Subramanian).** The 16 September 2026 final-approval hearing did **not** enter final judgment. ECF 445 (17 Sep 2026) ordered supplemental Rule 23(c)(2) notice and a social-media campaign modeled on Doe v. Bank of America, 25-cv-8520. ECF 446 memo-endorsement set a new final-approval hearing for **2 December 2026, 14:00 ET, Courtroom 15A**. Opt-out clock: three business days plus 60 days after the campaign starts. This is the single largest docket movement since C001.

• **STAMP — 27th USVI accounting (secondary reconstruction).** Open-source ledger analysis of the 30 June 2026 snapshot (filed ~31 July 2026) reports cash \$25,704,907.99; jewelry \$4,055; loans receivable \$3,432,264; entities \$78,503,501.04; filed total \$107,644,728.02 (one-cent add-back anomaly). \$12.5 million already parked in the Ward Qualified Settlement Account; \$22.5 million still payable if the \$35 million branch is used.

• **SPLIT — lapse arithmetic.** Public reconstructions of the Trust state that if funds are insufficient, bequests lapse in listed order. Priority 1–3 (Shuliak \$100M structured, Indyke \$50M, Kahn \$25M) already exceed reported gross assets before liabilities. Rank 16 (Maxwell \$10M) and rank 39 (Mark Epstein \$10M in trust for children) are, on current cash, economically remote unless Valar realizes far above carrying value.

• **WEFT — Valar still unrealized.** March 2026 congressional testimony by Indyke put two Valar Ventures interests at an unrealized ~\$172 million against a \$40 million 2015–16 cost basis. The 27th accounting still carries private entities at date-of-death marks (~\$78.5 million). The gap between mark-to-market testimony and book carrying value is the dominant residual-value anomaly.

II. LANE REPORTS (INDEPENDENT MOVES, THEN HIVEMIND)

A. HOOK — reverse chronology (most current first)

- 21 Sep 2026 — CNN: \$107.6M assets; ~\$170M victim payouts cumulative; Valar described as a multi-year wildcard; co-executor counsel projects ≥3 years of remaining probate.
- 18 Sep 2026 — ECF 446 so-ordered in part: social-media notice approved; final hearing reset to 2 Dec 2026.
- 17 Sep 2026 — ECF 445: 16 Sep hearing produced a notice deficiency finding, not a final judgment.
- 16 Sep 2026 — Settlement hearing held; G-03 from C001 therefore remains OPEN, restated as G-03A (final judgment) and G-03B (eligibility count 40+/<\$40).
- 8–9 Sep 2026 — Secondary press recirculation of Shuliak-as-primary-heir theme; no new primary instrument.
- 31 Jul / 30 Jun 2026 — 27th accounting window (secondary reconstruction; primary PDF still not held locally).
- Mar 2026 — House Oversight depositions: Kahn expects \$0 from the Trust other than \$250,000 executor fee at close; Indyke states he is not being paid from the estate as a beneficiary at present.
- Feb–Mar 2026 — Ward settlement agreement (\$35M / \$25M branch) and preliminary approval (3 Mar 2026, ECF 419).
- 30 Jan – 3 Feb 2026 — DOJ file dump includes EFTA01266204 (32-page 1953 Trust) and press first-reads of the beneficiary schedule.
- 30 Nov 2022 — USVI \$105M global settlement with estate, Trust, and affiliated entities (historical anchor; not new).
- 8 / 10 / 15 / 26 Aug 2019 — execution, death, will filing, Certificate of Trust (historical anchor).

B. STAMP — identifiers locked this cycle

- Instrument (public URL cited in reporting): <https://www.justice.gov/epstein/files/DataSet%2010/EFTA01266204.pdf> — Bates EFTA01266204.
- Composite / reconstruction Bates in secondary literature: EFTA00099303 (do not collapse the two identifiers).
- Federal class action: Allyson Ward v. Darren K. Indyke and Richard D. Kahn, 1:24-cv-01204-AS (S.D.N.Y.). Also captioned on CourtListener as Doe 3 v. Indyke. Lead counsel of record in approval papers: Boies Schiller Flexner LLP.
- Key ECF this cycle: 416-1 (Settlement Agreement 19 Feb 2026); 419 (preliminary approval 3 Mar 2026); 422–426 (final-approval packet 12 Aug 2026); 445 (17 Sep 2026 notice order); 446 (18 Sep 2026 memo endorsement + 2 Dec 2026 hearing).
- Comparator notice case cited by the Court: Doe v. Bank of America, N.A., 25-cv-8520 (S.D.N.Y.), ECF 134.
- USVI probate: Superior Court of the Virgin Islands, Probate Division; precise case number remains G-02. Certificate of Trust reported 26 Aug 2019.
- Noise node restated: Latham 20-cv-7102 remains a dismissed IFP complaint naming the Trust; not a merits source.

C. SPLIT — entity / person graph (public names only)

Fiduciaries. Darren Keith Indyke — co-trustee, co-executor, intended \$50 million legatee, rank 2. Richard David Kahn — co-trustee, co-executor, intended \$25 million legatee, rank 3. Alternate executor named in public will summaries: Boris Nikolic (instrument language still G-11). **Priority legatees (press reconstruction of EFTA schedule; ranks collide across outlets — 40 / 41 / 43 / 44).** Karyna Shuliak (rank 1): \$50 million cash + \$50 million annuity + designated realty (most realty already sold by the estate). Lawrence Paul Visoski Jr. (pilot): \$10 million. Bella Klein: \$3 million. Luciano A. Fontanilla Jr.: \$3 million + property. Merwin Dela Cruz: \$3 million. Valdson Viera Contrin: \$5 million. Ghislaine Maxwell: \$10 million (added only in the Aug 2019 instrument per secondary delta tables). Ann Rodriguez: \$5 million. David Rogers: \$4 million. Peter St. Omer, Dupson Donissaint, Pierre Jules: \$1 million each. Cecile de Jongh (former USVI first lady / reported employee): \$1 million. Jeanne Brennan Wiebracht: \$1 million. Jermaine Ruan, Daphne Wallace: \$1 million each. Brice Gordon (island manager): \$2 million. Edward Roed Larsen (also styled Emma in one outlet — name collision, treat as unresolved): \$5 million. Martin Nowak / Nowack (Harvard; misspelled in instrument per NYT): \$5 million. Arline M. Toylo and Carluz N. Toylo: \$1 million each (raised from \$500,000 in earlier drafts per secondary). Una Pascal: \$1 million. Mark Epstein: \$10 million in trust for children. Perry Bard: \$3 million. Fourteen (press count) female names remain redacted in the DOJ production; secondary tallies assign those redactions about \$73 million of face bequests. **Draft-delta nodes.** Celina Dubin appears in February 2019 draft as a property beneficiary and is removed in the August instrument (secondary). **Holding companies (status still G-09).** Plan D LLC; Great St. Jim LLC / Great St. James; Nautilus; Hyperion Air; Poplar Inc.; Southern Trust Company; Gratitude America; C.O.U.Q. Foundation. **Investment lock.** Valar Ventures (Peter Thiel co-founder; \$40 million in 2015–16; ~\$170–172 million unrealized testimony). Unnamed second manager fund <\$10 million in liquidation per March testimony. **Institutional counterparties (historical cash-out, not Trust legatees).** USVI AG (\$105 million + 50% Little St. James net); EVCP victim program; JPMorgan / Deutsche Bank / Bank of America victim-side settlements are parallel systems, not Trust distributions.

D. WEFT — patterns, anomalies, logic map upgrades

- Pattern W-1 Cash-poor, mark-rich. Book entities \$78.5M vs. Indyke Valar testimony ~\$172M. Distributions cannot be modeled on either number alone.
- Pattern W-2 Priority stack vs. liabilities. Face bequests >\$330M against ~\$107.6M gross and ≥\$27M quantified liabilities plus \$22.5M Ward tail. Lapse clause is the operating rule, not a footnote.
- Pattern W-3 Fiduciary-as-legatee optics. Indyke/Kahn sit as trustees, executors, and ranks 2–3. Public statements emphasize they have taken no Trust principal and expect little or none. The structure still concentrates decision rights and remainder hopes in the same two people.
- Pattern W-4 Notice failure as delay engine. Ward did not fail on merits at the 16 Sep hearing; it failed on reach. Each notice reset postpones pour-over.
- Anomaly A-1 Beneficiary-count scatter: 40 (NYT), 41 (one reconstruction), 43 (Celebrity Net Worth), 44 (ABC). Treat count as unresolved until primary schedule is paginated in-house.
- Anomaly A-2 Signature-date scatter persists (Kahn 10 vs 19 Aug; Indyke 18 Aug). Still G-01 adjacent.
- Anomaly A-3 One-cent imbalance in 27th accounting total. Methodologically useful; economically null.
- Anomaly A-4 Larsen given-name collision across outlets (Edward vs Emma). Do not merge identities.
- Anomaly A-5 Estate-tax path non-monotonic: large 2020 payment, ~\$111.6–\$112M IRS refund 2024, then renewed drawdown. Refunds are not Trust income.

III. OPEN GAPS (PERMANENT MISSION CONTINUES)

- **G-01 OPEN.** Certified unredacted beneficiary schedule from the primary EFTA PDF held and paginated in-house (not press paraphrase).
- **G-02 OPEN.** Official USVI probate docket number + certified 27th accounting PDF (cash / entity / liability split from the court file, not secondary ledger blogs).
- **G-03 RESTATED.** G-03A: entry of final judgment in 24-cv-01204. Hearing reset to 2 Dec 2026. G-03B: eligibility count that selects the \$35M vs \$25M branch. G-03C: social-media notice plan as actually executed (dates, platforms, reach metrics).
- **G-04 OPEN.** Valar 2026 maturity / extension / cash actually received versus \$172M testimony and \$78.5M book entities.
- **G-05 OPEN.** Remaining USVI, IRS, or private claims that still block pour-over.
- **G-06 OPEN.** Primary text of in terrorem / no-contest and lapse provisions (CNN paraphrases lapse; need page-and-line).
- **G-07 OPEN.** January 2019 predecessor and February–August restatement — primary-page delta table.
- **G-08 OPEN.** Certificate of Trust (26 Aug 2019) image from the probate file.
- **G-09 OPEN.** Entity roster status (Plan D, Great St. Jim, Nautilus, Hyperion Air, Poplar, Southern Trust Co., Gratitude America, C.O.U.Q.) — jurisdiction, active/dissolved, remaining book value.
- **G-10 OPEN.** Whether residue terminates the Trust or continues it after probate.
- **G-11 OPEN.** Nikolic alternate-executor instrument language.
- **G-12 OPEN.** LittleSis / foundation interlock freshness vs 2026 filings.
- **G-13 NEW.** Resolve Larsen given-name collision and Nowak/Nowack spelling against the primary PDF.
- **G-14 NEW.** Confirm whether EFTA01266204 and EFTA00099303 are instrument vs composite packet.
- **G-15 NEW.** Track ECF activity in 24-cv-01204 between 18 Sep and 2 Dec 2026 (notice proofs, claim counts, objections).

IV. AUTONOMOUS NEXT STEPS (CYCLE 003+)

1. Retrieve EFTA01266204.pdf from the public justice.gov URL and extract beneficiary pages, signature blocks, lapse/in terrorem text, and property schedules. Closes or narrows G-01, G-06, G-13, G-14.
2. Docket-watch 24-cv-01204 daily through 2 Dec 2026 (G-03 / G-15).
3. Locate USVI Superior Court probate case number and pull the 27th accounting PDF if the court posts it (G-02).
4. Separate Valar mark, book entity line, and any 2026 distribution notice from Valar or estate filings (G-04).
5. Build a three-column draft-delta (Jan 2019 / Feb 2019 / 8 Aug 2019) only from primary pages (G-07).
6. Do not treat Latham 20-cv-7102 or unsourced social posts as merits evidence.

V. HIVEMIND UPGRADE AFTER INDEPENDENT LANES

HOOK contributed the 21 September CNN residual-value and three-year probate forecast. STAMP contributed the ECF 445/446 reset and the 2 December hearing date — the only hard court fact that moved this hour. SPLIT expanded the named-employee layer (Visoski, Fontanilla, Dela Cruz, Contrin, St. Omer, Donissaint, Jules, Gordon, Toylo pair, Pascal, Bard, Wiebracht, Ruan, Wallace, Rodriguez, Rogers) and flagged redaction-block economics (~\$73 million face). WEFT refused to collapse book value with Valar testimony and restated lapse as the governing distribution rule. Collective judgment: Cycle 002 does not close G-01 through G-12. It adds G-13–G-15 and converts G-03 from a binary hearing question into a three-part notice-and-judgment problem. The pour-over remains legally intact and economically gated. No public source reviewed this cycle shows a Trust principal distribution to any named legatee.

VI. SOURCES (PUBLIC / OPEN-COURT)

- CNN Politics, 21 Sep 2026, “Epstein’s closest advisers may never see the millions he left them.”
- S.D.N.Y. 1:24-cv-01204-AS, ECF 445 (17 Sep 2026) and ECF 446 (filed 18 Sep 2026; so-ordered 17 Sep 2026).
- New York Times, 3 Feb 2026, Goldstein, 1953 Trust beneficiary first-read (EFTA 32-page instrument).
- ABC News, 30 Jan 2026, trust agreement first-read; Indyke 18 Aug / Kahn next-day signature report.
- Business Insider, 2 Feb 2026 and 24 Mar 2026 (Shuliak terms; Oversight testimony on fees and Valar).
- NYT, 4 Jun 2025, Valar cost basis and lockup; NYT 5 Feb 2026 Silicon Valley investment files.
- Secondary ledger reconstruction of 27th accounting (l0g.fr, Aug 2026) — use only as a pointer to the court PDF.
- Stephen M. Walker II, 1953 Trust explainer (updated Sep 2026) — secondary.
- USVI—estate settlement reporting, 30 Nov 2022 (historical).
- DOJ public file URL cited across outlets: [justice.gov/epstein/files/DataSet 10/EFTA01266204.pdf](https://justice.gov/epstein/files/DataSet%2010/EFTA01266204.pdf).

VII. DISPOSITION

Cycle 002 is recorded. Mission remains open. Next autonomous hourly run is Cycle 003. File: [artifacts/intel/1953-trust/STRAND-1953-TRUST-INTEL-MEMO-C002-2026-09-23.pdf](#). Doctrine restated: public, open-source, and open-court materials only.